

**SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX**

Index #

Date of filing:

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MODY DOUCOURE, as Administrator of the Estate of
WALY CAMARA a/k/a WALI CAMARA,

Plaintiff designates Bronx County
as the place of trial

Plaintiffs,

Basis of the venue is Locus of
Occurrence

-against-

SUMMONS

THE CITY OF NEW YORK and POLICE OFFICER
JORGE MONGE,

Plaintiff resides at
1975 Birchall Avenue, Apt. # 8B
Bronx, New York 10462

Defendants.

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County of Bronx

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER JORGE MONGE
c/o New York City Police Department-
52nd Precinct
3016 Webster Avenue
Bronx, New York 10467

Dated: Brooklyn, New York
June 23, 2017

**SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX**

-----X
MODY DOUCOURE, as Administrator of the Estate of
WALY CAMARA a/k/a WALI CAMARA,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK and POLICE OFFICER
JORGE MONGE,

Defendants.

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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS. , complaining of the defendants herein, upon information and belief, respectfully show to this Court, and allege as follows:

THE PARTIES AND FACTUAL ALLEGATIONS

1. That at the time of his death on August 9, 2016, and at all times hereinafter mentioned, decedent, WALY CAMARA a/k/a WALI CAMARA, was a resident of the County of Bronx, City and State of New York.
2. The plaintiff, MODY DOUCOURE, was the brother-in-law of the decedent, WALY CAMARA a/k/a WALI CAMARA, and a resident of the County of Bronx, City and State of New York.
3. That prior to the commencement of this action, MODY DOUCOURE, was appointed administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, decedent by Order of the Honorable Nelida Malave-Gonzalez, a Surrogate of the County of Bronx dated December 19, 2016.
4. The cause of action herein alleged arose in the County of Bronx, City and State of New York.
5. That the defendant, THE CITY OF NEW YORK, at all times hereinafter mentioned was a municipal corporation duly organized and existing by virtue of the laws of the State of New

York.

6. That the defendant THE CITY OF NEW YORK maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

7. That prior hereto on December 28, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

8. That on May 18, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing of the plaintiff, MODY DOUCOURE, was held.

9. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, THE CITY OF NEW YORK, employed POLICE OFFICER JORGE MONGE, as an agent, servant and/or employee.

10. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, POLICE OFFICER JORGE MONGE, was employed by the defendant, THE NEW YORK CITY POLICE DEPARTMENT.

11. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, decedent, WALY CAMARA a/k/a WALI CAMARA, was lawfully present at or about the A & M Deli Grocery, located at 2840 Valentine Avenue, County of Bronx, City and State of New York.

12. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, an individual believed to be known as Efrain Guzman, was present at A & M Deli Grocery, located at 2840 Valentine Avenue, County of Bronx, City and State of New York.

13. That on August 9, 2016 and at all times hereinafter mentioned and upon information and belief, a request was made to have the New York City Police Department respond to a location at 2840 Valentine Avenue, County of Bronx, City and State of New York.

14. That on August 9, 2016 and at all times hereinafter mentioned and upon information and belief, two (2) police officers assigned to the 52nd Precinct responded to the call of a disturbance at or about 2840 Valentine Avenue, County of Bronx, City and State of New York.

15. The defendant, POLICE OFFICER JORGE MONGE, was acting as a police officer when he responded to the disturbance/incident involving Efrain Guzman and an employee from A & M Deli Grocery on August 9, 2016.

16. That on August 9, 2016, and for sometime prior thereto the New York City police officers were issued a safariland holster model no. 2955 to use on duty to holster their service weapon.

17. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JORGE MONGE, utilized a safariland holster model no. 2955 to holster his service weapon.

18. As the defendant, POLICE OFFICER JORGE MONGE, escorted Efrain Guzman, out of the aforesaid premises, Efrain Guzman, was able to take possession of the weapon belonging to the defendant, POLICE OFFICER JORGE MONGE, and used it to fire multiple shots striking and killing the plaintiff, decedent, WALY CAMARA a/k/a WALI CAMARA, at the aforesaid location.

19. That the shooting of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was without probable cause.

20. The aforementioned shooting was performed knowingly, intentionally and willfully.

21. The aforementioned shooting was performed due to the negligence of the defendants.

22. The aforementioned shooting was performed without reason or provocation.

23. The aforementioned shooting resulted in the death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA.

24. That on August 9, 2016 and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JORGE MONGE, negligently failed to properly safeguard his service weapon.

25. That on August 9, 2016 and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JORGE MONGE, negligently failed to properly safeguard his service weapon so as to allow another individual to take possession of his service weapon.

26. That on August 9, 2016 and at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JORGE MONGE, negligently failed to properly safeguard his service weapon so as to allow an individual to take possession of the service weapon and fire it multiple times causing the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, to be shot and killed.

27. The actions of defendant, POLICE OFFICER JORGE MONGE, were performed within the scope of his employment and authority for whose acts the defendant, THE CITY OF NEW YORK, is liable under the doctrine of respondent superior.

28. After the discharge of defendant, POLICE OFFICER JORGE MONGE's weapon the defendant, POLICE OFFICER JORGE MONGE, failed to render or request timely medical assistance for the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA.

29. By reason of said shooting, decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror as a result of the negligence of the defendants herein.

**AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL DEATH
ON BEHALF OF MODY DOUCOURE, AS ADMINISTRATOR OF THE
ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

30. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "29" inclusive with the same force and effect as if more fully set forth at length herein.

31. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was lawfully at the

premises known as A & M Deli Grocery, located at 2840 Valentine Avenue, County of Bronx, City and State of New York, when he was caused to be shot, resulting in his death, by an individual who was able to take possession of the defendant, POLICE OFFICER JORGE MONGE's service weapon from an unsecured holster belonging to the defendant, POLICE OFFICER JORGE MONGE, who failed to properly protect and safeguard his service weapon.

32. That the shooting of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was without probable cause.

33. The aforementioned shooting occurred due to the negligence of the defendants.

34. The negligence of all defendants contributed to the shooting of decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA.

35. The recklessness of the defendant, POLICE OFFICER JORGE MONGE, contributed to the shooting of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, as Efrain Guzman, was able to take possession of the defendant, POLICE OFFICER JORGE MONGE's service weapon from an unsecured and/or defective holster belonging to the defendant, POLICE OFFICER JORGE MONGE.

36. The recklessness of the defendant, POLICE OFFICER JORGE MONGE, contributed to the death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, as a result of his negligence in gun retention and poor and negligent police tactics by the defendant, POLICE OFFICER JORGE MONGE, at the aforementioned date.

37. The defendant, POLICE OFFICER JORGE MONGE, did not take proper care of his weapon, and failed to properly safeguard his weapon so as to allow his weapon to be taken by Efrain Guzman, causing the death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, at the aforesaid location.

38. That the defendant, POLICE OFFICER JORGE MONGE, failed to properly safeguard his service weapon so as to cause the shooting death of of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA.

39. That the aforementioned death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was caused by the defendants, THE CITY OF NEW YORK and POLICE OFFICER JORGE MONGE, in failure to have a proper and safe holster for the weapon so as to better protect the service weapon from coming into the hands of non authorized users and/or other individuals.

40. That the aforementioned death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was caused due to the negligence of the defendants, THE CITY OF NEW YORK and POLICE OFFICER JORGE MONGE, in failing to properly train the police officers in gun retention while attending the police academy.

41. That the aforementioned death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, occurred due to the negligence of the defendants, THE CITY OF NEW YORK, in issuing subpar holsters that were known to have a shoddy snap clasp and defective weapons retention mechanism.

42. That prior to August 9, 2016 and for sometime prior thereto the defendant, THE CITY OF NEW YORK, was aware of the defective nature of the safariland holster model no 2955 yet negligently continued to allow it to be used by New York City police officers.

43. That at all times hereinafter mentioned, the defendant, POLICE OFFICER JORGE MONGE, engaged in the actions and conduct alleged herein in his official capacity as a New York City Police Officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

44. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for wrongful death against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JORGE MONGE, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT AND BATTERY
ON BEHALF OF MODY DOUCOURE, AS ADMINISTRATOR OF THE
ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was lawfully present at the premises known as A & M Deli Grocery, located at 2840 Valentine Avenue, County of Bronx, City and State of New York.

47. That on August 9, 2016, and at all times hereinafter mentioned and upon information and belief, plaintiff, decedent, WALY CAMARA a/k/a WALI CAMARA, was shot and killed without reason or provocation, resulting in death by an individual who was improperly restrained by POLICE OFFICER JORGE MONGE, while acting as an agent, servant and/or employee of the defendant, THE CITY OF NEW YORK .

48. The aforementioned shooting was caused due to the reckless and negligent actions of the defendants, THE CITY OF NEW YORK and POLICE OFFICER JORGE MONGE.

49. The defendant, POLICE OFFICER JORGE MONGE, involved in this incident was negligent in not securing his gun thereby permitting an individual to take possession of his weapon and shoot and kill the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, while acting within his scope of his employment with the defendant, THE CITY OF NEW YORK.

50. By reason of said assault and battery, the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre- death pain and suffering; emotional and psychological distress and horror, conscious pain and suffering.

51. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for assault and

battery against the defendants, THE CITY OF NEW YORK, including, but not limited to POLICE OFFICER JORGE MONG, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENCE ON
BEHALF OF MODY DOUCOURE, AS ADMINISTRATOR OF THE
ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

52. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "51" inclusive with the same force and effect as if more fully set forth at length herein.

53. That said incident and the injuries resulting therefrom were caused solely by the negligence, carelessness, and recklessness of defendant, THE CITY OF NEW YORK, through its agents, servants, employees and the police officers involved, including but not limited to POLICE OFFICER JORGE MONG, both directly and vicariously.

54. Such negligence consisted of negligence in hiring, training, hiring, supervision and retention of a weapon by the police officer involved in this incident, POLICE OFFICER JORGE MONGE; in failing to properly train persons who were unfit to serve as a police officers, including the defendant, POLICE OFFICER JORGE MONGE; in failing to exercise a reasonable precaution in employing said officer; negligence in the training and instruction of its police officers by not exercising care, instructing them as to their deportment, behavior and conduct as police officers, especially regarding the retention and safeguarding of a firearm and training to prevent individuals or from taking or having access to their gun from their holster, in providing police officers with a weapon holster known to be shoddy and which possessed a poor weapon protection mechanism; in failing to observe the existing police department protocols for police officers designed to govern the proper retention, protection and safeguard of a weapon causing serious injuries both physical and emotional resulting in death, conscious pain and suffering, pre impact terror arising and resulting out of a shooting of the plaintiff and further; improperly supervising police officers in the field; in failing to properly render timely medical aid so as to put the decedent plaintiff, WALY

CAMARA A/K/A WALI CAMARA, at risk which allowed the shooting of said decedent plaintiff to occur which resulted in his death.

55. That the defendant, THE CITY OF NEW YORK NEW YORK , through its agents, servants, employees and the police officers involved, including but not limited to POLICE OFFICER JORGE MONGE, were negligent, reckless and careless in the happening of the shooting of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, by Efrain Guzman.

56. That the defendant, THE CITY OF NEW YORK NEW YORK, was negligent, careless and reckless in providing the New York City police officers with a weapon holster that they had knowledge of shoddy, defective and unable to properly safeguard a police officers' weapon from individuals that may attempt to take possession of that weapon.

57. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, dangerous shoddy holster utilized by POLICE OFFICER JORGE MONGE, and continued to allow police officers to utilize them and allowed them to be used while police officers were in contact with the public at large.

58. As the result of said negligence, the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, was caused to suffer severe physical injuries and pain and suffering resulting in death, including pre-death pain and suffering; emotional and psychological distress and horror.

59. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for negligence against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JORGE MONGE, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT HIRING
AND RETENTION ON BEHALF OF MODY DOUCOURE, AS ADMINISTRATOR
OF THE ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

60. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of POLICE OFFICER JORGE MONGE, who failed to properly secure his gun, and protect his service weapon resulting in the shooting and death of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA.

62. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for negligent hiring and retention against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JORGE MONGE, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR NEGLIGENT TRAINING
ON BEHALF OF MODY DOUCOURE, AS ADMINISTRATOR OF
THE ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

63. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "62" inclusive with the same force and effect as if more fully set forth at length herein.

64. That the defendant, THE CITY OF NEW YORK, did not exercise responsible care and diligence in the training of the police officers relating to the safeguard of the service weapon while on duty.

65. That the defendant, THE CITY OF NEW YORK, was negligent in the training provided to the police officers regarding the proper manner in which to maintain possession of a service weapon while in the field or on duty.

66. That the defendant, THE CITY OF NEW YORK, was negligent in the training of the police officers at the academy relating to proper methods for protecting and safeguarding their service weapon while in the field and on duty.

67. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for negligent hiring and retention against the defendants, THE CITY OF NEW YORK, including but not limited to

POLICE OFFICER JORGE MONGE, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION
ON BEHALF OF MODY DOUCOURE, AS ADMINISTRATOR OF
THE ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

68. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "67" inclusive with the same force and effect as if more fully set forth at length herein.

69. That at all times hereinafter mentioned, the defendant, POLICE OFFICER JORGE MONGE, engaged in the actions and conduct alleged herein in his official capacity as a New York City police officer and under the color and authority of State law, regulation, ordinance, custom, and usage.

70. That such actions served to deprive the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA, of the rights and privileges of the **United States Constitution, the Fourth (4th) and Fourteenth (14th) Amendment of the U.S. Constitution and Sec. 1983 of 42 U.S.C.** In particular, he was deprived of his right to due process of law, of his right to happiness, to liberty, to be free from physical injury and the unwarranted use of physical force, and ultimately to the most fundamental right -his right to life.

71. That the defendant, THE CITY OF NEW YORK, had as a matter of policy and practice and with deliberate indifference failed to adequately train and supervise its police officers, including but not limited to POLICE OFFICER JORGE MONGE, regarding the protection of the constitutional rights of citizens.

72. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the defective nature of the safariland holster model no 2995, yet still permitted its use by members of the New York City Police Department, thereby placing the public at large at risk.

73. Such policy, practice and deliberate indifference has been described in excruciating detail in the various investigations and commissions into the Police Department. It has served to

encourage and sanction the police officers' unlawful conduct described above, and was the proximate cause of the violations of the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA's, civil rights on the day of August 9, 2016.

74. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for civil rights violation against the defendants, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JORGE MONGE, in a sum exceeding the jurisdictional limits of all the lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AS TO DEFENDANT, POLICE OFFICER JORGE MONG, ON BEHALF
OF MODY DOUCOURE, AS ADMINISTRATOR OF THE
ESTATE OF WALY CAMARA A/K/A WALI CAMARA**

75. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "74" inclusive with the same force and effect as if more fully set forth at length herein.

76. The actions of the defendant, POLICE OFFICER JORGE MONG, herein-above alleged, were malicious, willful and grossly negligent.

77. The defendant, POLICE OFFICER JORGE MONG, committed the negligent acts herein-above alleged, in that he failed to secure his gun as the perpetrator, Efrain Guzman, was able to remove the gun from the holster and used it to shoot and kill the decedent plaintiff, WALY CAMARA a/k/a WALI CAMARA at the aforesaid location.

78. By reason of the foregoing, the plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, demands judgment for punitive damages against the defendant, POLICE OFFICER JORGE MONGE, in a sum exceeding the jurisdictional limits of all the lower courts.

WHEREFORE, plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, for **wrongful death** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **First Cause** of Action; plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, for **assault and battery** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Second Cause** of Action; plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, for **negligence** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Third Cause** of Action; plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, for **negligent hiring and retention** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth Cause** of Action; plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, for **negligent training** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth Cause** of Action; plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA, for **civil rights violation** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth Cause** of Action; plaintiff, MODY DOUCOURE, as Administrator of the Estate of WALY CAMARA a/k/a WALI CAMARA for **punitive damages** demands judgment against the defendants in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh Cause** of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
June 23, 2017

Yours, etc.

SCOTTE RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 16WC08-09

ATTORNEY'S VERIFICATION BY AFFIRMATION

SCOTT E. RYNECKI, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
June 23, 2017



SCOTT E. RYNECKI, ESQ.